IN THE COURT OF CIVIL JUDGE (SENIOR DIVISION), KUSHINAGAR AT PADRAUNA, UTTAR PRADESH
Case No.: 123/26

IN THE MATTER OF:
GULAM ANSARI ... Plaintiff/Applicant
VERSUS
ABID ANSARI AND OTHERS ... Defendant/Respondent

AFFIDAVIT

I, Gulam Ansari, son of late Jumman Ansari, aged 59 years, resident of Village – Batrauli, Post Office – Kubersthan, Police Station – Kubersthan, District – Kushinagar, Uttar Pradesh – 274304, do hereby solemnly affirm and state on oath as under:

1. That I am the plaintiff in the above-mentioned suit for recovery of possession of ancestral land bearing Survey No. 112/1 (sub-divided portion of Khasra No. 112) situated in Village Batrauli, Tehsil Padrauna, District Kushinagar.
2. That I am fully aware of the facts of the case and competent to swear this affidavit.
3. That the defendants Abid Ansari, Ishrafil Ansari and Sakil Ansari, being my brothers, have taken possession of my undivided share in the said land in my absence.
4. That on 05/11/2025 the defendants executed a sale deed in favour of Mr. Joseph Desouza, S/o Michael Desouza, aged 61, of Village Bhatpar, PS Bhatni, District Deoria, for the transfer of my share in the suit property without my consent.
5. That a copy of the said sale deed has been annexed to the present application.
6. That the contemplated sale, if allowed, will defeat the rights for which this suit has been instituted and cause irreparable loss to me.
7. That I have filed an application under Order XXXVIII Rule 5 of the Code of Civil Procedure, 1908 seeking attachment of the said sale deed and any proceeds thereof before the decree is passed, to prevent the alienation of my share.
8. That I have not abandoned or relinquished my share in the suit property by residing outside the village; my absence was for employment and I intend to reside permanently at my native place.
9. That the attachment of the sale deed is necessary to preserve the status quo and to ensure that the decree, when passed, can be executed.

DEPONENT

VERIFICATION

Verified that the contents of the above affidavit are true to my knowledge and belief and nothing material has been concealed therefrom. Verified at Kushinagar, Uttar Pradesh on this 21st day of October 2026.

DEPONENT